

Smt Priyanka Joshi vs Shri Upkar Joshi on 6 October, 2020

Author: Navin Chawla

Bench: Navin Chawla

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IN THE HIGH COURT OF DELHI AT NEW DELHI

CM(M) 494/2020

SMT PRIYANKA JOSHI

..... Petition

Through: Mr.M.C. Kashyap, Adv.

versus

SHRI UPKAR JOSHI

.....

Through:

Mr.Randeep Singh, Adv.

CORAM:

HON'BLE MR. JUSTICE NAVIN CHAWLA

ORDER

% 06.10.2020 This petition has been heard through video conferencing. CM APPL. 25046/2020 (Exemption) Allowed, subject to all just exceptions. CM(M) 494/2020 & CM APPL. 25047/2020

1. This petition has been filed by the petitioner praying for the following reliefs:-

(a) Set aside the orders dated 28.01.2020 and 01.02.2020 both passed by Ld. Principal Judge (East), Family Courts, Karkardooma, Delhi in H.M.A. Petition No. 489/2018, thereby granted permission to examine the petitioner/respondent only after dropping 11 witnesses out of 12 witnesses from the list of witnesses dated 28.01.2020 submitted by the petitioner/respondent and closed the petitioner/respondent evidence and pray for setting aside both impugned orders dated 28.01.2020 and 01.02.2020;

(b) Pass appropriate directions to allow the list of witnesses of the petitioner/respondent dated 28.01.2020;

(c) Pass order to recall the petitioner/respondent by allowing the petitioner/respondent to cross examine herself again after setting aside her cross examination dated 01.02.2020 which was recorded as per wishes/dictation of Shri Sanjay Kumar, Principal Judge (East), Family Courts, Karkardooma, Delhi which suits the case of respondent/petitioner and against the respondent and did not record the correct version of the petitioner/respondent which was objected by the counsel of the petitioner/respondent but all those objections were over ruled by the Hon'ble Court in arbitrary manner were not recorded and even recorded wrong facts and conduct of the counsel of the respondent as court observations which were completely biased, arbitrary and wrong;

(d) Transfer the trial of aforesaid case from the court of Shri Sanjay Kumar, Principal Judge (East), Family Courts, Karkardooma, Delhi to other Family Courts, Karkardooma, Delhi;"

2. The petition seeking a Decree of divorce under Section 13(1)(i-a) of the Hindu Marriage Act, 1955 was filed by the respondent on 20.12.2014 and has been pending adjudication since that date. By an order dated 28.01.2020, the learned Principal Judge, (East), Family Courts, Karkardooma, Delhi, rejected permission to the petitioner to produce as witnesses, the uncle, aunty, cousins and security guard, on the ground that, in his opinion, only the petitioner herein was the relevant witness and the object of filing the list of witnesses containing twelve witnesses was merely to delay the adjudication of the petition further. This order was reiterated on 01.02.2020, when the cross-examination of the petitioner herein was recorded and closed and the case was put up for final arguments on 06.03.2020. On 06.03.2020, the hearing was again adjourned at the request of the petitioner.

3. The above orders have now been challenged in the month of October, 2020, taking the excuse of the restricted functioning of the Courts due to the COVID-19 pandemic. In my opinion, the present petition is liable to be dismissed on the ground of delay and laches alone. As noted hereinabove, the order rejecting permission to the petitioner to lead evidence of the other proposed witnesses was refused by the order dated 28.01.2020, when there was no restricted functioning of the Court. In fact, the order was reiterated on 01.02.2020 and the case was put up for final arguments on 06.03.2020, which could not be taken up for hearing only at the request of the petitioner.

4. The case is now fixed for final arguments on 08.10.2020. The learned presiding Judge has also asked the parties to file their written synopsis of arguments.

5. In view of the above, the present petition is dismissed leaving it open to the petitioner to challenge the eventual Decree that may be passed and if adverse to the petitioner, on all grounds available to the petitioner, in accordance with law.

NAVIN CHAWLA, J OCTOBER 6, 2020/rv